

24VECV06495 24VECV06495

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-05

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CI%2C08%2F05%2F2026

Source SHA-256: f4de7593b3eae604a9652a70c7f60ff8580f7b950a0c0076d3729c04ecd58ecc

Case Number: 24VECV06495 Hearing Date: August 5, 2026 Dept: I

24VECV06495 GREGORIO M GUILLEM vs FCA US, LLC, et al.

August 5, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling -- Motion for Relief As Counsel

I.

Background

On December 26, 2024, Plaintiff Gregorio M. Guillem ("Plaintiff") filed a complaint against Defendants FCA US, LLC ("FCA"), Dependable Dodge Canoga Park ("Dependable Dodge"), and Does 1 to 10 alleging five causes of action: (1) violation of Cal. Civ. Code § 1793.2(d); (2) violation of Civ. Code § 1793.2(b); (3) violation of Civ. Code § 1793.2(a)(3); (4) breach of the implied warranty of merchantability; (5) fraudulent inducement through concealment; and (6) negligent repair.

On July 24, 2026, Strategic Legal Practices, APC (hereinafter "Counsel") filed the instant unopposed motion to be relieved as counsel for Plaintiff.

II.

Relief As Counsel

The court may order that an attorney be changed or substituted at any time before or after

judgment or final determination upon request by either client or attorney and after notice from one to the other. (Cal. Code of Civ. Proc. § 284(2).) “The determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court.” (Manfredi & Levine v. Superior Court (1998) 66 Cal.App.4th 1128, 1133.)

An

application to be relieved as counsel must be made on Judicial Counsel Form MC-051 (Notice of Motion and Motion)(Cal. Rules of Court Rule 3.1362(a)), MC-052 (Declaration)(CRC Rule 3.1362(c)), and MC-053 (Proposed Order)(CRC Rule 3.1362(e)). The proposed order must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. (CRC Rule 3.1362(e).)

Further, the requisite forms must be served on the client and all other parties who have appeared in the case. (CRC Rule 3.1362(d).) The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court. (CRC Rule 3.1362(e).) The Court has discretion on whether to allow an attorney to withdraw, and a motion to withdraw will not be granted where withdrawal would prejudice the client. (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.)

Counsel declares that there has been a “complete breakdown of the attorney-client relationship” and that Plaintiff has remained unresponsive. (See MC-052.) Counsel provides all requisite forms and trial in this action is set for September 28, 2026, giving Plaintiff adequate time to find alternative counsel. Accordingly, the Court finds good cause for relief.

Based on the foregoing, Counsel’s motion for relief as counsel is GRANTED effective upon the filing of the proof of service of the signed order on all parties and client.

Counsel is ordered to give notice.